

Form No.HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT, LAHORE.

JUDICIAL DEPARTMENT

WP No. 53775 of 2025

Abid Sohail

vs.

Province of Punjab etc

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
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19.09.2025	Mr. Waqar A. Sheikh, Advocate for petitioner. Mr. Muhammad Nawaz Chaudhry, Addl: A.G., Ch. Raza Subhani, Arslan Amir Tarar, Syed Imran Ehsan, Faisal Anwar and Syed Ali Allow-u-Din Advocates. Mr. Javaid Iqbal Qureshi, Advocate (on watching brief). Mr. Muhammad Imran, Law Officer on behalf of Secretary Cooperatives Department. Fakhar Zaman, AR, Cooperative Societies.
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The petitioner, Abid Sohail, who is a candidate for the post of Executive Member, is aggrieved of rejection of his nomination papers through order dated 25.08.2025 passed by Election Sub-Committee (**ESC**), whereby interim list of candidates for the Election of Managing Committee of the Excise and Taxation Cooperative Housing Society Limited, Lahore to be held on 21.09.2025 was prepared, wherein he was declared as ineligible to contest elections because he left blank column “ج” (*Jeem*) of the nomination papers and has also called in question orders dated 01.09.2025 and 12.09.2025 passed by Circle Registrar Cooperatives Societies, Lahore and the Secretary Cooperatives, Government of Punjab respectively, whereby while dismissing the petitioner’s appeal and revision said decision was upheld. The reason for rejection on nomination papers is as under:-

“The candidate left blank column Jeem of the nomination papers. Even on checking online FBR verification his status is active tax payer. Therefore nomination paper is rejected in the light

of Honourable Lahore High Court's judgment passed in W.P. No. 8470/2022 titled M. Hanif Shad vs. Public Health Engineering Department Employees Cooperative Housing Society, Ltd. Lahore etc."

2. The claim of the learned counsel for the petitioner is that despite the fact that no one had raised any objection against the nomination papers of the petitioner, the ESC has rejected the same without any justification. Besides the above, his main objections against rejection of his candidature are twofold; first that in schedule attached with the byelaws and Election Rules of the society, Column "ج" (Jeem), requiring a candidate to disclose his business, was not available whereas in the nomination papers for the said purpose, the same had been included beyond the said rules, hence, due to non-filling of the same, nomination papers cannot be rejected. In the alternate it is claimed that petitioner neither had any business nor he was working anywhere, therefore, there was no reason to disclose his occupation and for the said reason he had crossed out the entries and the contention that the same had been left blank was incorrect.

3. The respondents have defended the said orders by claiming that every entry in the nomination papers had to be filled in and non-filling of the said entry would amount to concealment of fact. Further it is claimed that petitioner is being shown as active in the taxpayers list, therefore, he was obliged to disclose his business.

4. Perusal of record shows that the petitioner had crossed out all the entries in column "ج" (Jeem). The respondents were questioned that as per claim of the petitioner, he is not working anywhere and has no business and nor he is a retired servant, therefore, how can he be treated as having concealed the relevant

information. The respondents state that he should have specifically pointed out the said fact by filling relevant portion of the column, however, record shows that column “ج” does not provide any portion wherein a person who is not working anywhere or retired and does not have his own business to mention that he is not working anywhere. It has again been questioned that in case the petitioner had mentioned “Not Applicable”(“NA”) instead of crossing out the said column, would it be the sufficient compliance, the reply is in affirmative.

5. This Court does not see any difference between writing “NA” and crossing out the blank in the entry to show that said column is not applicable. It is not the case that column has been left blank which could be treated as concealment of relevant information and crossing out the same if the same is not applicable instead of writing the words ‘not applicable’ or ‘NA’ was sufficient and substantial compliance of the information required for the reason that for interpreting a document the intention and not the form of a document is to be looked into for reaching the conclusion in the matter and the intention in the instant matter was very clear that said column was not applicable as the petitioner was not having any business nor he was or had been previously serving at any place. Reliance is placed on Messrs Mill Wala Sons Limited versus Messrs Jaymissco and another (2009 CLD 1157 Karachi), Mst. Iqbal Bequm versus Abdul Ghaffar and others (1995 CLC 105 Lahore) and Crown Bus Service Ltd, Lahore versus Central Board of Revenue and 2 others (PLD 1976 Lahore 1487).

6. Merely showing active entry on the taxpayers list would not be sufficient to conclude that petitioner had concealed his business or profession while filling entries

in the column “ج” for the reason that respondents have not been able to disclose that what business of the petitioner is mentioned in the active taxpayers list and even a person whose income is below the taxable limit or no income at all can always submit his tax return under the below taxable income category. Furthermore, a person may be dependent upon his relatives and not himself earning anything yet be able to survive through expenses borne by his relatives, etc., which he need not disclose in tax return. Besides, filing nil return or below taxable income in tax return would make the petitioner an active taxpayer in the list maintained by FBR, which has various rights attached to it. Needless, to mention that where a person previously had filed any tax return he was obliged by law to file tax return for subsequent years also, even if the income had subsequently become below the said limit, therefore, it was not justified by the respondents to reject nomination papers of the petitioner unless they had sufficient information available with them relating to business, profession or service of the petitioner, which he had deliberately concealed. Moreover mentioning the words not applicable or NA or crossing out the blank entry at the relevant space meant for the same, unless found to be incorrect, neither makes said statement submitted by the person filing the nomination paper as false or incorrect in any material particular nor constitutes any defect of substantial nature justifying rejection of nomination papers. Reliance is placed on **Saud Majeed versus Returning Officer and 2 others** (2019 CLC 520 Lahore). The aforesaid presumption however would not be applicable if the nomination papers had been left totally blank instead of crossing out the said entry, which could not be treated as blank, the purpose of which is that in forms and legal

documents, crossing out blank entries prevents others from fraudulently adding unauthorized information later.

7. As regards the order dated 11.02.2022 passed in WP No.8470 of 2022 referred to in the order of ESC dated 25.08.2025 as one of the reason to reject nomination papers of the petitioner, suffice it to observe that the said order is distinguishable on the basis of facts of the case for the reason that in the said case in column of business, the candidate had mentioned the word “*individual*” without further mentioning that what business he was individually attended to, whereas in the present case, claim of the petitioner is that he has no business at all.

8. For what has been discussed above, as the respondents are not themselves aware of the business of the petitioner and column “ج” relating to the same has been *prima facie* rightly crossed out, case of concealment of fact against the petitioner cannot be summarily made out and it is observed that by invoking the penal provision, nomination papers were not rightly rejected, hence, by **allowing** this writ petition, the impugned orders are **set-aside** and nomination papers of the petitioner are deemed to be **accepted**, however, this would not preclude the respondents to challenge election of the petitioner after any tangible information is subsequently available. In view of what has been decided above, the objection raised by the petitioner that column “ج” was not available in the nomination papers attached with byelaws of the society has been left open to be decided in some other proceedings.

(MUZAMIL AKHTAR SHABIR)
 JUDGE

Naveed *

APPROVED FOR REPORTING: